

HOUSE No. 2358

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act permitting municipal expenditures for the maintenance of private roads.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Andrew Macdonald</i>	<i>152 Old County Rd, Sandwich, MA 02537</i>	<i>1/17/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/11/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/25/2025</i>

HOUSE No. 2358

By Representative Xiarhos of Barnstable (by request), a petition (accompanied by bill, House, No. 2358) of Andrew Macdonald and Joseph D. McKenna relative to permitting municipal expenditures for the maintenance of private roads. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act permitting municipal expenditures for the maintenance of private roads.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6N of chapter 40 of the General Laws is hereby amended by adding
2 the following paragraph:-

3 (a) Notwithstanding any general or special law to the contrary, municipalities may
4 appropriate and expend public funds for the maintenance, repair, and improvement of private
5 roads when the following conditions are met:

6 (1) The private road serves a minimum of 100 residential properties that contribute
7 property tax revenue to the municipality.

8 (2) The private road is the primary or sole access for the properties served.

9 (3) The private road has historical significance or longstanding ties to the municipality,
10 such as having been part of the town's infrastructure prior to a significant geographical change or
11 reconstruction.

12 (4) The private road is not maintained by a developer or private entity under an
13 agreement or covenant requiring such maintenance.

14 (b) Municipalities opting to provide such services shall adopt a bylaw or ordinance
15 specifying the conditions, scope, and process for the maintenance or repair of private roads,
16 including limitations on expenditures and the types of services provided.

17 SECTION 2. Municipalities providing maintenance for private roads under this act shall
18 report annually to the Massachusetts Department of Revenue on the expenditures and the number
19 of properties served. Such reports shall ensure transparency and compliance with the intent of
20 this act.